

26STCV03953 26STCV03953

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Case Number: 26STCV03953 Hearing Date: August 24, 2026 Dept: 224

Neal v. Carson Nissan

TENTATIVE RULING

There is a valid, enforceable arbitration agreement. The dispute is covered by the Agreement. Plaintiff has not opposed the Motion.

Defendant Carson Nissan's Motion to Compel Arbitration is GRANTED. The parties are ordered to arbitration before AAA. The action is STAYED pending the outcome of arbitration.

The Case Management Conference and Order to Show Cause hearings are taken OFF Calendar. The Court sets a Post-Arbitration Status Conference for August 27, 2027 at 8:30 a.m.

The parties are ordered to file a joint status report five court days in advance of the status conference.

ANALYSIS

Introduction

On February 6, 2026, Plaintiff Linayah Neal, in propria persona, filed her Complaint against Defendant Carson Nissan.

On March 28, 2026, Defendant filed its Answer.

On April 22, 2026, Defendant filed the instant Motion to Compel Arbitration and to Stay the action.

No opposition has been filed.

Legal Standard

In a motion to compel arbitration, the moving party must prove by a preponderance of evidence the existence of the arbitration agreement and that the dispute is covered by the agreement. The burden then shifts to the resisting party to prove by a preponderance of evidence a ground for denial (e.g., fraud, unconscionability, etc.). (Rosenthal v. Great Western Fin. Securities Corp. (1996) 14 Cal.4th 394, 413-414; Hotels Nevada v. L.A. Pacific Center, Inc. (2006) 144 Cal.App.4th 754, 758.)

Generally, on a petition to compel arbitration, the court must grant the petition unless it finds either (1) no written agreement to arbitrate exists; (2) the right to compel arbitration has been waived; (3) grounds exist for revocation of the agreement; or (4) litigation is pending that may render the arbitration unnecessary or create conflicting rulings on common issues. (Code Civ. Proc., § 1281.2; Condee v. Longwood Management Corp. (2001) 88 Cal.App.4th 215, 218-219.)

"California has a strong public policy in favor of arbitration and any doubts regarding the arbitrability of a dispute are resolved in favor of arbitration." (Coast Plaza Doctors Hospital v. Blue Cross of California (2000) 83 Cal.App.4th 677, 686.) "This strong policy has resulted in the general rule that arbitration should be upheld unless it can be said with assurance that an arbitration clause is not susceptible to an interpretation covering the asserted dispute." (Ibid. [internal quotations omitted].) This is in accord with the liberal federal policy favoring arbitration agreements under the Federal Arbitration Act ("FAA"), which governs all agreements to arbitrate in contracts "involving interstate commerce." (9 U.S.C. § 2, et seq.; Higgins v. Superior Court (2006) 140 Cal.App.4th 1238, 1247.)

The Existence of an Agreement

A party to an arbitration agreement may seek a court order compelling the parties to arbitrate a dispute covered by the agreement. (CCP § 1281.2) The party seeking arbitration has the initial "burden of proving the existence of a valid arbitration agreement by a preponderance of the evidence, while a party opposing the petition bears the burden of proving by a preponderance of the evidence any fact necessary to its defense." (Ruiz v. Moss Bros. Auto Group, Inc. (2014) 232 Cal.4th 836, 842.)

A moving party meets its initial burden by showing the agreement at issue exists, and need only establish its validity on challenge by opponent. (HM DG, Inc. v. Amini (2013) 219 Cal.App.4th 1100, 1114; Espejo v. Southern Calif. Permanente Med. Group (2016) 246 Cal.App.4th 1047, 1060.)

Defendant submits the arbitration agreement as Exhibit A to the Ayala Declaration. (Ayala Decl., ¶ 4 & Exh. A.) The Contract is a six-page "Retail Installment Sale Contract – Simple Finance Charge (With Arbitration Provision)" arising from Plaintiff's January 16, 2026 purchase of the subject vehicle from Defendant. Plaintiff's signature appears in several places throughout the document, including in a box at the bottom of page 1 entitled "Agreement to Arbitrate," which itself refers the customer to the full arbitration provision on page 5. (Ayala Decl., ¶ 4 & Exh. A, pp. 1, 5.)

The arbitration provision on page 5 provides that, at either party's election, "[a]ny claim or dispute, whether in contract, tort, statute or otherwise . . . which arises out of or relates to your credit application, purchase or condition of this Vehicle, this contract or any resulting transaction or relationship" shall be resolved by neutral, binding arbitration and not by a court action. (Ayala Decl., Exh. A, p. 5.)

"With respect to the moving party's burden to provide evidence of the existence of an agreement to arbitrate, it is generally sufficient for that party to present a copy of the contract to the court." (Baker v. Italian Maple Holdings, LLC, 13 Cal. App. 5th 1152, 1160 (2017).)

There is an existing and enforceable Agreement.

Further, the dispute is covered by the Agreement. The Complaint arises out of the sale, attempted financing, and subsequent cancellation of Plaintiff's vehicle transaction with Defendant, and sounds in emotional distress. Such claims fall squarely

within the provision's broad language covering any claim "in contract, tort, statute or otherwise" that "arises out of or relates to" the purchase or condition of the vehicle, the Contract, or any resulting transaction or relationship. Any doubt as to scope is resolved in favor of arbitration. (Coast Plaza, supra, 83 Cal.App.4th at p. 686.)

An agreement to arbitrate exists. The dispute is covered by the Agreement. Plaintiff does not dispute the existence of an agreement, as the Motion is unopposed.

The court must grant the petition unless it finds either (1) no written agreement to arbitrate exists; (2) the right to compel arbitration has been waived; (3) grounds exist for revocation of the agreement; or (4) litigation is pending that may render the arbitration unnecessary or create conflicting rulings on common issues. (Code Civ. Proc., § 1281.2; Condee v. Longwood Management Corp. (2001) 88 Cal.App.4th 215, 218-219.) None of these circumstances are present. Accordingly, the Court must grant the Motion.

The Federal Arbitration Act

The FAA applies. The provision is in writing, and an automobile installment sale contract evidences a transaction involving interstate commerce. (9 U.S.C. §§ 1–2; Sanchez v. Valencia Holding Co. (2015) 61 Cal.4th 899, 906 [applying the FAA to a comparable automotive sales contract].)

Conclusion

There is a valid, enforceable arbitration agreement. The dispute is covered by the Agreement. Plaintiff has not opposed the motion.

Defendant Carson Nissan's Motion to Compel Arbitration is GRANTED. The parties are ordered to arbitration before AAA. The action is STAYED pending the outcome of arbitration.

The Case Management Conference and Order to Show Cause hearings are taken OFF Calendar. The Court sets a Post-Arbitration Status Conference for August 27, 2027 at 8:30 a.m.

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Moving party to give notice.

Parties who intend to submit on this tentative must send an email to the Court at indicating intention to submit on the tentative, and copying all parties in the email communication. Please be advised that if you submit on the tentative and elect not to appear at the hearing, the opposing party may nevertheless appear at the hearing and argue the matter. Unless you receive a submission from all other parties in the matter, you should assume that others might appear at the hearing to argue. If the Court does not receive emails from the parties indicating submission on this tentative ruling and there are no appearances at the hearing, the Court will adopt the tentative as the final order, or take the matter off calendar at its discretion.